

		In addition, the security should not include the \$15,282.50 awarded in the prior action. Section 391 authorizes security for reasonable expenses incurred "in or in connection with" the litigation instituted or maintained by the vexatious litigant. (See Code Civ. Proc., § 391.1, subd. (c).) The judgment in the prior action is a separate, existing obligation and is not an expense incurred in defending the present action. Thus, the court will order that Plaintiff furnish security in the amount of \$15,110. Defendant FVRH shall give notice of this ruling.
4	Biotronik, Inc. vs. Letarte 30-2024-01436213	<u>Motion to Seal</u> Defendant Inari Medical, Inc.'s Amended Motion to Seal Portions of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint is GRANTED. The court ORDERS that the following shall be sealed: 1. Exhibit 3 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229), and 2. Exhibit 4 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229). <u>Pending Motion</u> Defendant Inari Medical, Inc. (Defendant Inari) moves to seal Exhibits 3 and 4 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229). <u>Standard for Motion to Seal</u> "Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c); see <i>In re Marriage of Tamir</i> (2021) 72 Cal.App.5th 1068, 1078 [public's right of

		access to court records is based on both common law right of access to public documents, as well as constitutional right grounded in the First Amendment].) To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, Rule 2.551, subd. (b)(1).) The motion must be served on all parties, and unless the court orders otherwise, a complete copy of the document must be served on all other parties that already possess copies, along with the redacted version. (Cal. Rules of Court, Rule 2.551, subd. (b)(2).) To grant a motion to seal, the court must expressly find that: 1. an overriding interest exists that overcomes the right of public access to the record; 2. the overriding interest supports sealing the records; 3. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. the proposed sealing is narrowly tailored; and 5. no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Examples of documents that may qualify to be sealed are: • Documents containing trade secrets, (see <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Tech., Inc.</i>, <i>supra</i>, 182 Cal.App.4th at p. 988 [business' quality control records and complaint handling procedures may be sealed]); • Documents containing material protected by a privilege, (see <i>Huffy Corp. v.</i>
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		<i>Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [documents protected by attorney-client privilege may be sealed]); Confidential settlement agreement, (see <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283). A sealing order must: (a) specifically state facts supporting the above findings; and (b) be narrowly tailored (<i>i.e.</i>, it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file). (See Cal. Rules of Court, rule 2.550(e)(1); Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (Rutter 2017) ¶ 9:418.1.) In this case, Defendant Inari contends that the documents qualify to be sealed because the parties entered into a stipulated protective order and Defendants designated the documents as confidential. Defendants point to the Stipulation and Protective Order – Confidential and Highly Confidential Designations agreed to by the parties, (see ROA #58), and the fact that Defendants have designated the documents as “Confidential” or “Highly Confidential – Attorneys’ Eyes Only.” However, an agreement “alone is insufficient to constitute an overriding interest to justify sealing.” (<i>McNair v. National Collegiate Athletic Ass’n</i> (2015) 234 Cal.App.4th 25, 35–36.) California Rules of Court rule 2.551(a) states that “The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” Instead, there must be “a specific showing of serious injury.” (<i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1282.) Defendant Inari also presents evidence that the documents consist of “emails from Andrew Letarte and Angelo Mazza’s respective interview processes with Inari” and that they “contain sensitive information showcasing the interview process, identifying contacts and customers Letarte and
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		Mazza communicated with during the process, and what Letarte and Mazza learned from those communications.” (Decl. of Linda Kaufman in Supp. of Def. Inari’s Amended Mot. to Seal Portions of Pltf.’s Amended Mot. for Leave to File Amended Compl. (Kaufman Decl.), ¶ 3.) Defendant Inari also avers that it “treats this information as it would any other sensitive employment information or confidential information, including compensation package terms, salaries, and benefits information,” (<i>ibid.</i>) and that it “does not make this information public,” (<i>id.</i>, ¶ 4). Finally, Defendant Inari shows that “disclosure could potentially put Inari at a disadvantage, and essentially undermine the efforts expended in creating its unique process, in protecting details about its business and products, and in keeping the information nonpublic.” (<i>Ibid.</i>) The interest in protecting confidential business information and trade secrets is sufficient to overcome the right of public access and supports the sealing of the documents. (See <i>In re Providian Credit Card Cases</i>, supra, 96 Cal.App.4th at p. 300.) Defendant Inari also has shown that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. Further, the documents are relatively short but contain a substantial amount of confidential business information interspersed throughout them. Thus, the proposed sealing is narrowly tailored and there are no less restrictive means to achieve the overriding privacy interest. In addition, the requirements of Rule 2.551 have been met. No other party to this action or third-party has opposed the motion or shown that the requirements of Rule 2.550 or Rule 2.551 have not been met. Therefore, the court will grant the motion to seal. Defendant Inari shall give notice of this ruling.

5	Ragland vs. Wells Fargo Bank, N.A. 30-2023-01346326	<u>Demurrer</u> Defendant Onity Group, Inc.'s Demurrer to First Amended Complaint is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15. In light of Plaintiff Sawyer Ragland's Notice of Urgent Cardiac Procedure, Medical Unavailability, Affected Proceedings, and Preservation of Rights filed September 2, 2026 (ROA #339), the court will continue the hearing on this matter. The court clerk shall give notice of this ruling.
6	Kim vs. Williams 30-2023-01317262	<u>Motion to Quash</u> Defendant Securitas Security Services USA, Inc.'s Motion to Quash Deposition Notice of Nonparty Consultant Mark Mooring is GRANTED in part and DENIED in part. Defendant Securitas Security Services USA, Inc.'s is ORDERED to produce Mark Mooring for deposition at a mutually agreeable date and time, and in the manner specified in the Notice of Deposition of Mark Mooring, no later than 10 days after service of the notice of ruling. The deposition of Mark Mooring shall be limited in scope to questions regarding the foundational basis of any of the opinions and analyses that Mark Mooring has provided in support of any motions for summary judgment or summary adjudication. <u>Pending Motion</u> Defendant Securitas Security Services USA, Inc. (Defendant Securitas) moves to quash the Notice of Deposition of Mark Mooring (Notice of Deposition). <u>Standard to Take and Quash Depositions</u> Any party may obtain discovery by taking in California the oral deposition of any person, including any party to the action. (See Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition of a person who is under the jurisdiction of the court shall give written notice of the deposition. (See Code Civ. Proc., § 2025.220, subd. (a).)